

NATIONAL MOOT COURT COMPETITION 2026

MOOT PROPOSITION

The Republic of Aryavarta is a democratic nation governed by a written Constitution. Rapid advancements in Artificial Intelligence have led to widespread adoption of AI-powered surveillance systems by both public and private entities.

In 2025, the Government introduced the Digital Security and Public Protection Act (DSPPA), authorizing deployment of facial recognition systems in public spaces to improve law enforcement and national security. Under the Act, data collected could be retained for up to ten years.

A technology company, NeuroVision Technologies Pvt. Ltd., entered into a contract with the Government to operate and maintain the surveillance infrastructure. During implementation, reports emerged that the system had incorrectly identified several individuals, resulting in wrongful detentions and reputational harm.

Ms. Aisha Verma, a journalist and civil rights activist, discovered that her personal movement records, communication metadata, and facial recognition logs had been collected without her knowledge. She filed a writ petition before the Supreme Court of Aryavarta challenging the constitutional validity of the DSPPA.

The Government argues that the Act serves a legitimate state interest and is necessary to combat terrorism, organized crime, and cyber threats. NeuroVision Technologies contends that it merely acted under contractual obligations and cannot be held liable for policy decisions of the State.

Issues for Consideration

1. Whether the Digital Security and Public Protection Act violates the fundamental right to privacy.
2. Whether mass facial recognition surveillance satisfies the test of proportionality.
3. Whether the State can retain biometric and surveillance data for ten years.
4. Whether NeuroVision Technologies can be held liable for constitutional violations arising from deployment of the system.
5. Whether adequate safeguards, transparency, and accountability mechanisms exist under the Act.

Note:

Teams may frame additional sub-issues. All laws of Aryavarta are *pari materia* with modern constitutional democracies. Any resemblance to real persons, institutions, or events is purely fictional and intended solely for academic purposes.